The Bombay High Court's judgement also generated a different kind of paradox. Uncodified personal law that carried over from colonial rule would occupy a higher position than law enacted by democratically elected legislatures. While ordinary law covering any subject (including religion) could be challenged on the basis that it violated fundamental rights, uncodified personal law was now effectively free from scrutiny in the courts. Conversely, if and when personal law was codified by the democratically elected legislature, that would be subjected to greater judicial scrutiny than uncodified personal law lacking democratic sanction.

Not surprisingly, then, many progressive, pro-women decisions of various courts have been in respect of enacted law rather than uncodified personal law. Most prominent (and controversial) among these was the Shah Bano case,[13] which addressed the question of whether a Muslim divorcee would be entitled to a maintenance allowance from her ex-husband under Section 125 of the Criminal Procedure Code (CrPC). The ex-husband, Mohammed Ahmed Khan, argued that his payment of a small sum under religious personal law ('mahr') exempted him from any further obligation to make payments. The Supreme Court rejected this argument, deciding that Khan would pay a monthly sum of maintenance to his ex-wife.

The judgement courted tremendous controversy, with the Rajiv Gandhi government ultimately deciding in favour of overturning it through legislation. However, soon after the law was enacted, several high courts (and later, the Supreme Court) effectively restored the position that Muslim women had a right to maintenance after divorce.[14] This was done through a 'gender-sensitive interpretation'[15] of the legislation enacted by the Rajiv Gandhi government, with the courts holding that the new legislation replaced the right to claim periodic maintenance payments under the CrPC with a right to claim a one-time divorce settlement. There are many other examples of the courts making liberal decisions in the context of enacted law. In one case, the Supreme Court held that a law enacted during the British Raj preventing Christians from bequeathing property for religious and charitable purposes was unconstitutional.[16] At the turn of the century,